

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2167

By: Pfeiffer

AS INTRODUCED

An Act relating to fees; amending 28 O.S. 2021, Section 121, which relates to fees for certain publications; modifying fees; prescribing requirements; defining certain terms used with respect to printing or publication processes; imposing duties upon newspaper with respect to orders of court; imposing duties on persons or entities with respect to timely submission for publication; prescribing procedures for publication subsequent to omissions; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 28 O.S. 2021, Section 121, is amended to read as follows:

Section 121. A. In all cases where publication of legal notices is required or allowed by law, the person or official desiring publication shall be required to pay:

1. For all matters other than tabular matter, ~~fourteen cents (\$0.14)~~ twenty-two cents (\$0.22) per word for first insertion, and ~~thirteen cents (\$0.13)~~ twenty cents (\$0.20) per word for each subsequent insertion, with each separate group of letters or

1 numerals included in the matter to be counted as one word,
2 regardless of the number of digits involved;

3 2. Effective November 1, 2005, for all matters other than
4 tabular matter, fifteen cents (\$0.15) per word for first insertion,
5 and fourteen cents (\$0.14) per word for each subsequent insertion,
6 with each separate group of numerals included in the matter to be
7 counted as one word, regardless of the number of digits involved;
8 and

9 3. For all tabular matter, ~~in not to exceed eight-point type,~~
10 including but not limited to, graphics, maps, seals, signature
11 blocks, forms, spreadsheets, lists of persons, firms, and
12 corporations whose personal property taxes are delinquent and lists
13 of lands and town lots upon which taxes are delinquent, seventy
14 cents (\$0.70) per line per newspaper column in width, for first
15 insertion, and sixty-five cents (\$0.65) per line per newspaper
16 column in width, for each subsequent insertion. A standard tabular
17 line shall be a minimum of one and one-half (1.5) inches in width;

18 4. A newspaper qualified to publish notices under the laws of
19 this state has the authority to publish all notices in a format
20 readable to a reasonable person. Type size used for notices shall
21 be no less than 8 point non-condensed type, with a maximum of 10
22 point non-condensed type, unless a larger type size is requested in
23 writing by the person desiring the notice. Any notice submitted to
24

1 a newspaper which is unreadable or intended to be unreadable may be
2 rejected or typeset by the newspaper in a readable format;

3 5. Newspapers providing affidavits or proof of publication are
4 permitted to charge and collect a fee for a notarial act as defined
5 in Section 5 of Title 49 of the Oklahoma Statutes or Section 209 of
6 Title 49 of the Oklahoma Statutes as applicable;

7 6. For any notice placed in a newspaper there shall be a
8 minimum charge of Twenty-five Dollars (\$25.00) for such notice if
9 the total calculated cost of words and lines described in paragraphs
10 1 and 2 of this section is less than Twenty-five Dollars (\$25.00);

11 7. When notice by publication in a newspaper is required by
12 law, order of court, or other means, the newspaper publishing the
13 notice shall, at no additional cost to the person or official
14 desiring the notice, cause the notice to be placed on the newspaper
15 website if the newspaper operates a website, in front of any paywall
16 or paid access to the website. Additionally, the newspaper shall
17 upload notices to a statewide website established and maintained as
18 a joint venture of a majority of Oklahoma newspapers qualified to
19 publish notices by the laws of this state. Posting of notices on
20 the newspaper website and statewide website shall be performed in a
21 timely manner but shall not invalidate the publication of a notice
22 otherwise valid when published in the newspaper. Temporary outages
23 or service interruptions prohibiting the posting or display of such
24 notice shall be considered harmless error and the proper legal

1 notice requirements shall be considered met if the notice published
2 in the newspaper otherwise complies with the requirements for
3 publication. Access to the statewide website shall be free to the
4 public; and

5 8. Any person or official required to publish a notice shall
6 submit the notice in writing or by electronic means by the deadline
7 established by the newspaper for such notices. No deadline shall be
8 set by the newspaper that is more than five (5) business days prior
9 to the date of publication, excluding the date of publication,
10 Saturdays, Sundays, and legal holidays in the State of Oklahoma.
11 Upon request, the newspaper shall confirm receipt of the notice and
12 notify the person or official in writing or by electronic means of
13 the dates of the issue or issues in which the notice shall appear.

14 If the newspaper fails to publish the notice in the issue
15 specified in the confirmation, the newspaper shall publish the
16 notice in a future issue specified by the person or official
17 desiring the notice at no charge. If the notice has multiple
18 insertions, only the first notice omitted by the paper shall be
19 required to run at no charge.

20 B. The county treasurer shall collect the cost of publication
21 of lists of lands and town lots sold for delinquent taxes at
22 original sale or resale from the individuals purchasing the lands
23 and town lots at the sale or resale involved, and shall deposit all
24 monies collected to the credit of the fund of the county which paid

1 the cost of publication. The publisher of the notice shall be paid
2 for the publication of the notice from the general fund of the
3 county or, if monies are not available in the general fund of the
4 county at the time of publication, from the "Resale-Property Fund"
5 of the county.

6 SECTION 2. This act shall become effective November 1, 2025.

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